Research Process Example: Specific Amount

This will use your single- issue problem to demonstrate the research process and specifically the three different outputs: research map, research log, and annotated outline.

Starting the Research

After reading the file **two times**, you should pull out the following details for your initial exploratory search.

- Client needs to sue Pima County, but there are notice requirements
- A.R.S. § 12-821.01 is the relevant statute about notice of claim filings
- Research task: "1) the key requirements under the statute [re: specific amount]; and 2) the potential pitfalls that exist based on the attached cases."
- **Do not** research elements 1 (facts sufficient to understand) or 3 (supporting facts)

If the memo didn't give you the cases to use, there are two paths to get them: 1) review the annotations (notes of decision in Westlaw)* on the statute, or 2) find a secondary source. For this example, we are doing the latter.

Research map and Annotated Outline are organized by analytic reasoning, where the log shows your steps through sources. Since you learn new questions as you research

*NOTE: These are not part of the statute but rather a list of cases that clarify and apply the statute the editors found helpful.

Research Map

Your research map is a list of questions to be answered in your writing in order to come to a conclusion about how the law applies to your case. You build this over time from sources you encounter. Below is a **partial** research map. The bracketed source and question type are notes from me, not part of the map, to show how the map evolves as you research. Yahweh would surface later when looking for an answer

Please note, I've numbered some

Q1. What must a notice of claim contain before a claimant may sue a public entity?
[From secondary source. Exploratory]

UMB Bank, NA v. Parkview School, Inc., 254 Ariz. 383 (Ct. App. Div. 1 2023); Backus v. State, 220 Ariz. 101 (2009); Deer Valley Unified School Dist. No. 97 v. Houser, 214 Ariz. 293 (2007); Yollin v. City of Glendale, 219 Ariz. 24, 191 P.3d 1040 (Ct. App. Div. 1 2008).

Q2. What is the purpose of the requirement?
[First cite from Deer Valley, second cite from City of Mesa. Focusing]

Falcon ex rel. Sandoval v. Maricopa County, 213 Ariz. 525 (2006), Deer Valley Unified School Dist. No. 97 v. Houser, 214 Ariz. 293 (2007)

"They permit the public entity to investigate the claim, assess liability, consider settlement before litigation, and budget for possible future litigation." Mesa

Q3. How do courts define a specific amount?
[From reading Deer Valley, but possibly your own initial curiosity as well. Focusing]

Deer Valley Unified School Dist. No. 97 v. Houser, 214 Ariz. 293 (2007)

Q4. What must be shown in a notice to meet the requirements?
[Question from researcher's curiosity. Focusing/Application. Yahweh v. City of Phoenix, 243 Ariz. 21 (App. 2017) would be surfaced to answer this question]

Q5. What is some language that might prevent a notice from satisfying the specific amount requirement?
[From secondary source. Application]

Donovan v. Yavapai County Community College District, 244 Ariz. 608 (Ct. App. Div. 1 2018). Deer Valley Unified School Dist. No. 97 v. Houser, 214 Ariz. 293, 152 P.3d 490 (2007). City of Mesa v. Ryan in & for Cnty. of Maricopa, 258 Ariz. 297 (2024).

Research Log

The research log shows the progression of your research along different threads.

Research Question: What must a notice of claim contain before a claimant may sue a public entity? (Q1)

Question Type: Exploratory

Method: Look at statute from assigning memo

Findings: 1) Facts showing why the entity is liable, 2) a specific amount the claim can be settled for, and 3) facts supporting that amount, filed with the right person within 180 days.

Source Consulted: A.R.S. § 12-821.01(A)

Next Question: What is the purpose of the requirement?

Research Question: What is the purpose of the requirement? (Q2)

Question Type: Focusing

Method: Looked at the case mapped from secondary source for this question

Findings: The contents allow the entity to investigate and assess liability, consider settling before a lawsuit, and plan its budget. A claim that does not comply is barred.

Source Consulted: *Deer Valley Unified Sch. Dist. No. 97 v. Houser,* 214 Ariz. 293 (2007)

Next Question: Done for now on purpose

Research Question: How do courts define a specific amount? (Q3)

Question Type: Focusing

Method: Kept reading Deer Valley, where the court interprets the statutory language.

Findings: A particular, certain sum that settles the claim if the entity accepts it.

Source Consulted: *Deer Valley Unified Sch. Dist. No. 97 v. Houser*, 214 Ariz. 293 (2007)

Next Question: What is some language that might prevent a notice from satisfying the specific amount requirement?

Notes: The West annotation says Deer Valley disapproved Young v. City of Scottsdale's "reasonableness" standard. Don't rely on Young or Hollingsworth.

Research Question: What is some language that might prevent a notice from satisfying the specific amount requirement? (Q5)

Question Type: Application

Method: Looked at the case mapped from secondary source for this question

Findings: Qualifiers such as “approximately,” “or more,” and “no less than” as they make the exact settlement amount impossible to pin down.

Source Consulted: Deer Valley Unified Sch. Dist. No. 97 v. Houser, 214 Ariz. 293 (2007)

Next Question: What must be shown in a notice to meet the requirements?

Notes: Many cases cover what is not. Need something clearer about what is.

Research Question: What must be shown in a notice to meet the requirements? (Q4.)

Question Type: Focusing/Application

Method: No leads in the map yet. Checked the Lexis annotation to the statute under “Specific Amount” and found Yahweh.

Findings: A real settlement offer that the entity would accept to end the claim; should show intent to be bound.

Source Consulted: *Yahweh v. City of Phoenix*, 243 Ariz. 21 (App. 2017)

Next Question: What is some language that might prevent a notice from satisfying the specific amount requirement?

Notes: Yahweh is not in the West notes excerpt I have. Check both annotations next time.

Annotated Outline

Your annotated outline is your organized answers from your research that serve as the future skeleton of your writing. Research gives you the R and E in CREAC, so the outline gives you the core to build around. This example is abbreviated since it is tied to an assignment, but should give you the core purpose of the outline.

I. Notice of claim must contain 1, 2, 3… **cite**
   a. This allows the government to asses…. **cite**

II. A specific amount is . . . . **cite**
   a. The amount must show . . . . **cite**

III. Potential pitfalls

a. Qualifying language . . . . **cite**
b. Calculations allowed when clear, but . . . . **cite**